

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
JUDGE NINA Y. WANG

Civil Action: 20-cv-00627-NYW-MDB
Courtroom Deputy: Emily Buchanan

Date: March 13, 2023
Court Reporter: Darlene Martinez

Parties

Counsel

MONICA ACOSTA,

Plaintiff,

Sharyn Dreyer
Michelle Gibson

v.

PUEBLO SCHOOL DISTRICT NO. 60, and
JONATHAN DEHN, in his individual capacity,

Defendants.

David Strachan
Michael Schreiner

COURTROOM MINUTES

JURY TRIAL – DAY 1

8:46 a.m. Court in session.

Appearances of counsel. Jury panel not present.

Defendants object to three of the slides in Plaintiff's proposed opening statement PowerPoint.

ORDERED: The Court will permit Plaintiff to use Slide 1 during her opening statement. The Court will not permit the photograph in Slide 3 to be used during Plaintiff's opening statement. To the extent that the photograph in Slide 3 is admitted during the trial and Plaintiff wants to use it in closing argument, she may do so.

8:51 a.m. Court in recess.

9:11 a.m. Court in session.

Jury panel present.

Court's preliminary remarks and introduction of staff, counsel, and parties.

Jury panel sworn for voir dire.

9:24 a.m. Voir dire by Court.

10:25 a.m. Voir dire by Ms. Dreyer.

10:40 a.m. Voir dire by Mr. Schreiner.

10:51 a.m. – 10:55 a.m. Bench conference: Plaintiff's for cause challenges to Jurors 100429793 and 100463332.

10:55 a.m. Court in recess.

11:12 a.m. Court in session.

Jury panel present.

11:12 a.m. – 11:14 a.m. Bench conference: Court will excuse Jurors 100429793 and 100463332 for cause.

Continued voir dire by Court.

11:22 a.m. Continued voir dire by Ms. Dreyer.

11:26 a.m. Continued voir dire by Mr. Schreiner.

11:30 a.m. Counsel pass jury panel for cause and request no additional voir dire be done by the Court.

Challenges for cause:

- 1) 100444970
- 2) 100444260
- 3) 100429793
- 4) 100463332

Plaintiff's Peremptory Challenges:

- 1) 100471511
- 2) 100461447
- 3) 100465764

Defendants' Peremptory Challenges:

- 1) 100450031
- 2) 100445931
- 3) 100441364

11:38 a.m. Eight jurors sworn to try the case:

- 1) 100464249
- 2) 100454204
- 3) 100439378
- 4) 100462519
- 5) 100440137
- 6) 100466353
- 7) 100448278
- 8) 100444999

Court instructs the jury.

11:41 a.m. Jury is excused.

11:41 a.m. Court in recess.
12:07 p.m. Court in session.

12:11 p.m. Jury present.

Court instructs the jury.

12:29 p.m. Court in recess.
1:18 p.m. Court in session.

Jury present.

1:21 p.m. Plaintiff's opening statement by Ms. Gibson.

1:42 p.m. Defendants' opening statement by Mr. Strachan.

Plaintiff's witness, Donna Raught, called and sworn.

2:09 p.m. Direct examination of Ms. Raught by Ms. Gibson.

Plaintiff offers Exhibit 3.

2:46 p.m. – 2:47 p.m. Bench conference: Defendants’ objection to Exhibit 3 is sustained.

2:47 p.m. Continued direct examination of Ms. Raught by Ms. Gibson.

Exhibits 4, 2, 1 are admitted.

3:08 p.m. Court in recess.

3:21 p.m. Court in session.

Jury present.

Plaintiff’s witness, Donna Raught, resumes.

3:23 p.m. Cross examination of Ms. Raught by Mr. Schreiner.

Exhibits 8, 37, 32, 21 are admitted.

3:39 p.m. Redirect examination of Ms. Raught by Ms. Gibson.

Court advises jury regarding admonitions of trial.

3:45 p.m. Jury excused until March 14, 2023 at 9:00 a.m.

Discussion regarding witnesses who will testify tomorrow.

Court provides its thoughts with respect to finalizing the jury instructions.

3:54 p.m. Court in recess.

Trial continued.

Total time in court: 5:03